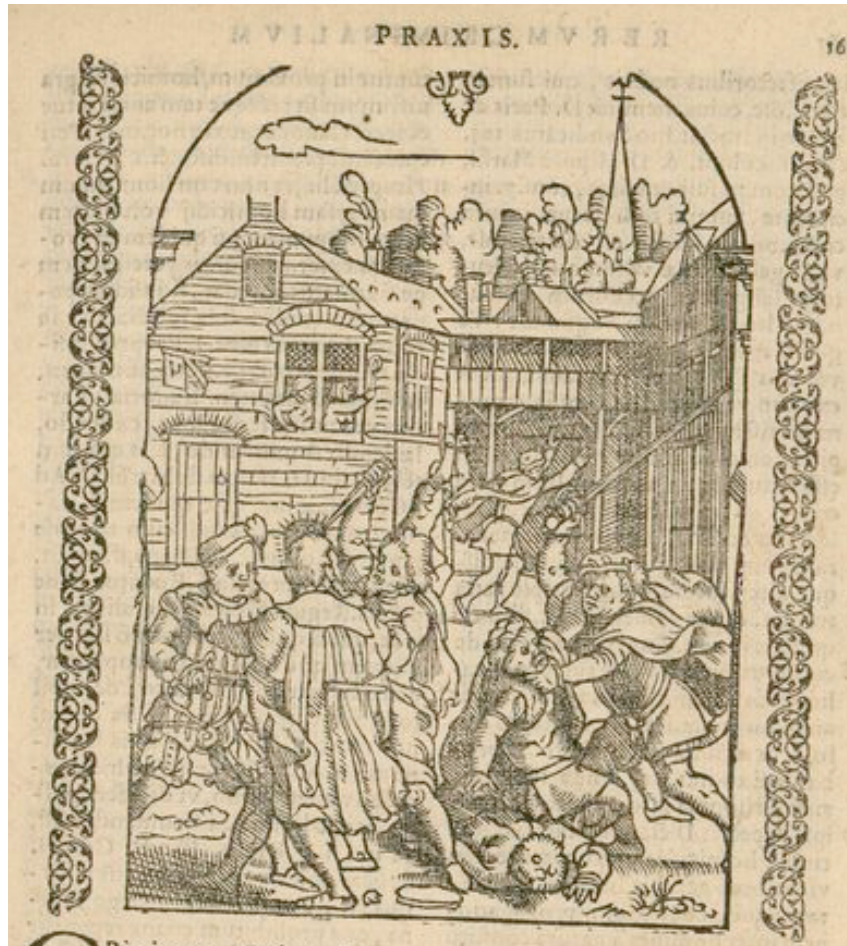


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Jodocus Damhouder, *Praxis Rerum Criminalium*, 1562, p. 167

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Keynote Robert Davis, Ohio State University. "Typologies of Violence in Early-Modern Europe"

- 1 Adam Teller, Brown University. "Killed or Be Killed. Realities and Representations of Violence in Seventeenth-century Ukraine"
- 57 Samuel Cohn, University of Glasgow. "Plague and Violence against Jews in Early Modern Europe"
- 70 Rebekka Voss, Goethe-Universität, Frankfurt. "Eschatological Avengers or Messianic Saviors? Violence and Physical Strength in the Vernacular Legend of the Red Jews"
- 90 Serena di Nepi, Sapienza Università di Roma. "Rome, 1571: A Body and a Murder Investigation in the Ghetto"
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Jewish Violence in Polish Laws and Courts

Jerzy Mazur, Université de Nantes

Source: C. Hans-Kurt, *Freisinger Rechtsbuch (Germanenrechte Neue Folge. Abteilung Stadtrechtsbücher)* (Weimar 1941), p. 48, article 41 and 42 (Translation: Jerzy Mazur).

Freisinger Rechtsbuch, article 41 and 42 (around 1328)

41. Concerning the Jews it is established that you cannot convict them except when with [the testimony of] Jews and Christians. If a Jew kills a Christian and this is seen only by Christians and Jews were not present, could the Jews be found guilty of manslaughter only with Christians [as witnesses]? We say: yes. But if the Jew can prove self-defence, he should be free, but he should prove this with Christians and not Jews.

42. But if it happens that a Christian kills a Jew, should he make amends? We think so, because the Jews have special rights and live in the cities under princely protection. For this reason, the Christian must make reparation to them, as we have already stated concerning the murder, and even more so, because it is the power of the princes to demand a greater penance, as if such person had killed a Christian, namely because he has broken the princely peace in regard to Jews. We say: If a Christian has done therefore, how should one judge him? Yes, we think you should judge him as if he had killed a Christian. Furthermore, the judge should accuse him, and not the Jews, even if he (the victim) has relatives.

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Freisinger Rechtsbuch, article 41 and 42 (around 1328)

41. Den juden ist gesetzet, daz man si niht uberziugen mach an mit juden unt Christen. Ob ein jud einen Christen ze tot slueg, daz ssehen nur Christen und wseren niht juden do pei, mag man den juden uberziugen des totslags mit den Christen? Wir sprechen: Ja; mag aver der jud di notwer pringen, so sol er ledicli sein unt sol si pringen mit Christen unt niht mit juden.

42. Ist aver daz der Christen den juden siecht, sol er in iht puezzen? Wir sprechen: Ja; wan di juden besunderen reht habent und ein der fursten vrid sitzent ein den steten; davon muoz er in also puezzen, als wir vorgeschriben haben um den totslach, um so vil mer, daz es hintz der Kirsten genaden stet, waz er mer nimt, denn ob er einen christen erslagen hiet, davon daz er des fürsten frid zerbrochen hat an den jnden. Wir sprechen: wierf der christen darum gevangen, sol man icht uber in richten? Wir sprechen: Ja; man sol über in richten als ob er einen christen erslagen hiet. In sol auch der richtet ansprechen um nicht di juden, ob er freunt hat.

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Source: F. Ortloff, Sammlung deutscher Rechtsquellen: Das Rechtsbuch nach Distinctionen und ein Eisenachisches Rechtsbuch enthaltend (Jena, 1836), p. 176 (Book III, Article XVII, no. 38, 39, 40); G. Kisch, Jewry Law in Medieval Germany. Laws and Court Decisions Concerning Jews, (New York, 1949), p. 85-86 (Translation: Guido Kisch).

Meissener Rechtsbuch (1357-1387)

40. Slehet, oder wundet, oder totet ein iude den andern, das ist czu richten als under den cristen. Waz darnach nach iudi- schem gesece ist, daz schol er darnach liden, wenn er unser gerichte geliden hat.

40. Should a Jew beat or wound or slay another Jew, this shall be judged as between Christians. What in addition is demanded by Jewish law, he shall suffer afterward, when he has suffered our judgment.

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Source: B. Ulanowski, "Najdawniejszy układ systematyczny prawa polskiego z XV wieku," In: *Archiwum Komisji Prawniczej*, vol. 5 (Kraków, 1897), p. 100-112

Privilege Granted to the Jews of Great Poland. King Kazimierz Jagiellończyk, 1453

On injuring and pulling hair of a Jew by a Christian XII

In addition, if a Jew and a Christian have together a dispute between themselves, and if the Christian injures the Jew causing a bloody or livid wound, or slaps him, or pulls out hair from his head, then we are providing Jews with our jurisdiction, so that the aforementioned wounded Jew, can take the oath according to their custom, in such a way that the Jew does it over knocker (*feruncam*), or (*alias*) *na kolcze*, at the door of their synagogue. Then the Christian, if proven guilty by the Jewish oath, shall be liable to pay him 5 marks for the slapping and ten marks for a livid wound, however for the bloody wound he will give to the Jew half of his property, whether movable and immovable, but the remaining half of these goods are reserved for us and our successors, and the Palatine of the relevant district. And other crimes will be adjudicated according to our will, but for pulling the hair from the head of a Jew, Christians will need to pay indemnity according to the decree of the lords, residing in this court, according to the law.

On the capital punishment for killing a Jew XIII

Furthermore, if, God forbid, Christian kills one of the Jews, and then the kinsman of the killed Jew proves the Christian guilty by taking an oath over *rodale* (Torah scroll) according to the Jewish custom, then we decide and establish, that such Jew must be given compensation by the Christian, valued at life for life, and this cannot be done differently.

On the fugitive killer of the Jew XIV

If however such Christian, who killed a Jew, in some way escaped, and he cannot be captured or held, then the his movable and immovable property, whichever he has, [is confiscated]: one half of the aforementioned goods and real estate should be given to the blood relatives of the murdered Jew, another half will belong to our royal chancellery.

On *salvus conductum* for the killer of the Jew XV

If however the fugitive killer of the Jew would wish to obtain *salvus conductum*, this cannot be given without the agreement of the blood relatives of the murdered Jew.

On Christians' wounds XXVI

Also, if any Christian happens to show wounds, whatever they may be, inflicted on him by the Jew, he should then present them to their Szkolnik and also usher. And this cannot be judged by the judge in the court located elsewhere, but with their Szkolnik, or even in a place that the Jews with their judge from different parts choose or define. And if the Christian brings two Jewish and two Christian [witnesses who confirm] that the Christian was inflicted wounds by the Jew, then this Jew must pay him according to the custom of the land.

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Privilege Granted to the Jews of Great Poland. King Kazimierz Jagiellończyk, 1453

De vulneracione et capilacione Iudei per Cristianum XII

Insuper si Cristianus cum Iudeo contenderit insimul quovismodo et si idem Cristianus Iudeum vulneraverit vulnere cruentato aut livido, aut sibi maxillam inflixerit, vel crines de capite extraxerit, sive eruerit, tunc nos damus sibi Iudeo talem iurisdictionem nostram, quod prefatus Iudeus taliter vulneratus, prefato iuramento secundum consuetudinem ipsorum, super feruncam, alias na kolcze, ipsorum Iudeorum scole hostii iurare debet, tunc talis Cristianus, si per Iudeum superiuratus fuerit, debebit tenebitur eidem pro maxilla a quolibet digito quinque marcas et a vulnere livido decem marcas, a vulnere vero cruentato medietatem suorum bonorum tam mobiliū quam et immobiliū Iudeo predicto, residuam vero medietatem ipsorum bonorum pro nobis et successoribus nostris et pro palatinis huiusmodi districtus reservamus, et alias iuxta nostram voluntatem iudicabimus premissa, sed pro crinibus de capite Iudei extractis Cristianus prefatus sibi Iudeo solvere tenebitur secundum decretum dominorum, in eodem iudicio residencium, iuxta posicionem iuris.

De pena capitali Iudei occisi XIII.

Ceterum, quod absit, si aliquis Cristianus aliquem ex Iudeis occiderit, extunc proximior Iudeus Iudei occisi, si Cristianum super rodale decem preceptorum superiuraverit secundum tenorem Iudeorum, tunc volumus et statuimus, quod talis Iudeus ipsum Cristianum superiuratum mortificare debet, taxando pro capite caput; et hoc aliter non sit faciendum.

De occisore Iudaico aufugiente XIV.

Si vero talis Cristianus, qui occiderit Iudeum, aliquo modo aufugerit, ita, quod non possit capi, nec in manibus haberi, extunc ipsius bona eiusdem Christiani tam mobilia, quam et immobilia, quecunque habuerit, primo medietas dictorum bonorum et hereditatum debet devoivi super proximiores consanguineos Iudei interempti, reliqua vero medietas pro cancellaria nostra regia debet pertinere.

De salvo conductu Iudaici occisoris XV.

Item si talis profugus Iudei interempti salvum conductum habere voluerit, dari sibi non debet, nisi cum consensu dictorum consanguineorum ipsius Iudei interempti.

De protestacione vulnerum Christianorum XXVI.

Item si aliquem Christianum contingent publicare vulnera, quecunque sint, per Iudeum sibi data, tunc debet, ea monstrare Scolnemu ipsorum Iudeorum et eciam ministeriali, et ipse iudex non debet iudicare nec iudicium locare in causa tali alibi, nisi circa Scolny ipsorum, aut eciam ubi dicti Iudei cum iudice ipsorum ex utraque parte consencient et locum aptum cum ipsis elegerint, seu deputaverint, et ibidem si adducet Cristianus duobus Iudeis et duobus Christianis, quod sibi idem Iudeus eadem vulnera dedit et intulit, extunc idem Iudeus sibi solvere debet eadem, iuxta consuetudinem terrestrem.

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G. Rolny, Ed. *Acta officii consistorialis Leopoliensis antiquissima*, vol. I, *Continet acta annorum 1482–1489* (Leopoli, 1927), p. 361, no. 1757 (Translation: Jerzy Mazur)

Court case from the archbishopric consistorial court of the Lwow's

Die Iovis VII mensis Decembris (December 7th, 1486)

Discretus Johannes clericus in minoribus constitutus de Trebowla natus proposuit contra perfidum Iudeum Iacob de Busko filium Moysi in Golegori manentem, quod quadam die feria tertia post festum sancti Iacobi anno presenti hora secunda noctis, nescitur quo ductus spiritu, ut presumitur suasu dyaboli, tanquam inimicus nominis Christi, ipsum Iohannem clericum vulneravit enormiter in faciem et letale vulnus intulit et in terram prostravit, quam enormem et letalem lesionem et sanguinis effusionem prefatus Iohannes clericus extimat bona fide ad mille florenos puri auri hungaricalis boni et iusti ponderis, mallens plus de propriis amittere quam prefatam enormem lesionem et sanguinis effusionem a prefato perfido Iudeo Iacob pati et sustinere, prout patitur et sustinet, petens prefatum perfidum Iudeum compelli ad solutionem et nichilominus ipsum declarari sententias excommunicationum incidisse a canone latas. In presencia prefati perfidi Iudei negantis narrata et factum. Et clericus prefatus testes examinatos et iuratos super eadem percussione produxit.

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Court case from the archbishopric consistorial court of the Lwow's

A discreet Franciscan monk John, native of Trembowla, proposes against perfidious Jew Jacob of Busk, son of Moses, currently remaining in Gologory, that once, on a third day after St. Jacob's festival of the current year around second hour of that night, the aforementioned Jew, either led by the evil spirit, or presumably by his Devil, being the enemy of Christ, he wounded this priest John gravely on his face, inflicted a mortal wound, and prostrated him to the ground. And John estimates the enormous and deadly injury and the loss of blood at 1000 florins of pure gold and just weight, and decides, that after he suffered and bore the aforementioned enormous wound and loss of blood from the abovementioned Jew Jacob, and still suffers and bears it, to asks the court to compel the perfidious Jew Jacob to pay the compensation, and nonetheless to declare the sentence of excommunication against the Jew as indicated by the canon law. In the presence of the plaintiff, the aforementioned Jew negated the story and facts. And the priest presented the sworn witnesses concerning this beating.

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Source: *Akta grodzkie i ziemskie z czasów Rzeczypospolitej Polskiej z archiwum tak zwanego bernardyńskiego we Lwowie w skutek fundacyi śp. Alexandra hr. Stadnickiego. Wyd. staraniem Galicyjskiego Wydziału Krajowego.*, vol. XIV, o. Pietruski and X. Liske, Eds. (Lwów 1889),. Nos. 3044-46; 3092

Court case from the Lwów castle court

Prussy. Industrious Jacob from the royal village Prussy proposed against perfidious Jew Filimon, that he killed his brother Matthew de Prussy who was resting on the royal land and on the free road, and he therefore brings the (case of) deceased Matthew to the court. Filiomon responded through his attorney nobleman John Kampkam that neither he committed this crime, nor killed Matthew, nor knew anything about the aforementioned homicide. Jacob said: I am ready to take an oath to Jew Filemon on my brother's life. And standing he declared himself guilty of the murder and asked for mercy alias *dal szyć na miłosz*. We, seating in court, decree that Jacob should receive 10 marks which he sought for the life of his brother Matthew from Jew Filimon, and further the same Jew should already be condemned concerning this violence by this recognition and proposal, since he asked himself for mercy for the murder. This case is transferred to Lord Palatine after his taking of office in Leopoldis in one week.

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Court case from the Lwów castle court

Nr 3044, 15 February 1454

Prussy. Laboriosus Iacobus de villa Regali Prussy proposuit super perfidum Iudeum Filimonem, quia sibi fratrem occisit Mathiam de Prussy superrequitantes super bona Regalia in via libera et eundem mortuum Mathiam coram iudicio statuit. Filiomon respondit per ipsius procuratorem nobilem Johannem Campkam, quia non sum factor huius criminis, nec occisor Mathie, nec scio de huiusmodi homicidio. Iacobus dixit: sum paratus coniurare super caput fratrum mei Iudeum Filemonem. Et stans redidit se culpabilem de capite et petit misericordiam alias *dal szye na miloscz*. Nos sedentes in iudicio decrevimus decem marcas Iacobo pro capite fratris ipsius Mathie super Iudeo Filimone requisivit, utrum idem Iudeus debet iam condemnari in violencia iuxta istam recognitionem et propositionem, quod se dedit ad misericordiam pro capite. Nos hoc transtulimus ad dominum Pallatinum post ingressum in Leopoldis proxima in una septimana.

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Court case from the Lwów castle court

Nr 3045, Die supradicto.

Nobilis Stanislaus advocatus de Prussy et Iohannes et Tyszko ius aspexerunt pro violencia et vulneribus super Iudeos Mussa et ceteros, qui retenti sunt super violencia facta in Prussy ; duabus septimanis ipsis ius posuimus.

Nobleman Stanislaus attorney from Prussy and John, and Tyszko come for justice in the case of violence and injuries (committed) by Jews Mussa and others, who are arrested over the violence in Prussy. We (the court) call the court proceeding in regard to this matter in two weeks.

Nr 3046. Die supradicto.

Procurator Filiomonis Iudei in iudicio requisivit, si ipsum Filiomenem Iacobus inculparet pro capite. Iacobus dedit culpam Filiomeni.

Attorney of Jew Filiomon demanded in court, that Jacob asked yon Filiomen for compensation for the capital crime committed. Jacob did accuse Filiomen.

Nr 3092, 15 April 1454.

Iudei Thysch, Filiomon, Musza, Ysaczko recognoverunt , quia, prout habuerunt convencionem cum nobili Stanislao advocato de Prussy Regali et ipsum vulnerebant et alios homines, pro istis omnibus sunt concordatiet satisfecerunt et cum omnibus hominibus vulneratis ex ambabus partibus Christiani et Iudei sic, quia habent habere silentium pro vulneribus sub pena vallata vadii centum marcarum domino Pallatino, quia omnes ommiserunt vulnera pro vulneribus et Iudei iam caput Mathie solverant. Et iam Iudei possunt libere transire, quo ipsis

placuerit, quia de fideiussoria sunt liberi, quam fuerant involuti pro capite occiso.

Jews Thysch, Filiomon, Musza and Isaczko recognized, as they had agreed with nobleman Stanislaus attorney from Prussy, that they inflicted harm on him and other persons, and all these people were satisfied through the settlement, together with all injured persons from both sides, Christians and Jews in this way, that they will be silent about the wounds under the threat and security of 100 marks payable to the Lord Palatine, and that everyone laid aside seeking damages for wounds and that Jews have already paid for Matthew's head. And now Jews are able to go freely, and it pleases those, who are freed from the sureties provided, who were involved in the murder.

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Source: A.Linder, *Jews in the Legal Sources of the Early Middle Ages* (Detroit, 1998), p. 208
(translation by A. Linder)

Law of Burgundians, De Iudaeis

102:1: Quicumque Iudaeus in Christianum manum preasumpserit mitter, pugno aut calce aut fuste aut flagello au saxo aut per capillos prehenderit, iubemus, ut manus incisione damnetur

Any Jew who will dare to raise his hand against a Christian with fist, club, whip, or stone, or will seize him by his hair, we order that he should be condemned to have his hand cut off.

102:2 : Quod si voluerit manum suam redimere, LXXV solidis eam iudemus redimere, et multae nomine solidis XII.

If he should wish to redeem his hand, we order him to redeem it with seventy-five solidi, and a fine of twelve solidi

103:3: Praetere iubemus, si in sacerdotem manum praesumpserit mittere, tradatur ad mortem, et facultas ipsius fisco nostro tradatur.

Apart from that, we order that if he should dare to raise his hand against a priest, he shall be executed and his property transferred to our fisc.

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Source: *Acta Nigra Maleficorum Wisniciae (1665-1785)*, W. Uruszczak, Ed. (Kraków, 2010), p. 11-14

Court case from the municipal court in Nowy Wiśnicz

Interrogation was conducted of Łukasz Orsula in the case of a murdered Jew during which Orsula, questioned concerning his reasons for killing this Jew, responded: I had no reason, it was only because Pirdzel's son came to me with another Strozyk. I was napping around noon, since I was drunk, and they came to me saying that their father told them about the approaching Jew who has the money, and that he should be killed. And so we followed him. I captured him, and Strozyk grabbed a stick. He was beating this Jew. I only held him, but I would have never done it, had not old Pirdzel ordered his boys to come to me. Then when asked, what they did with the money [they stole], he responded: We gave the boys, Pirdziel and Strozyk's brother 1 zloty to each, and the rest we split between ourselves with Strozyk. The cloths however weren't good and I buried them.

[...]

The court (jointly held by the mayor, jurors and aldermen) published the following decree in regard to this crime and evil deed done the innocent that committed by Łukasz Orsula. First, that the aforementioned plaintiff and instigator Marek Czapnik submitted a petition against the accused criminal Łukasz Orsula from the village of Rzezawa for killing his son-in-law, and he asked this court for sacred justice, and [Łukasz Orsula] during the second and third questioning freely admitted that he, together with his accomplices, murdered the Jews, however he denied that he personally beat [this Jew], but only captured him and squeezed, but Struzyk killed him with the stick. The court questioned him in order to acquire a greater truth, and he admitted to stealing [from this Jew] when the murder was committed. And the court, looking into this case and taking into consideration that the aforementioned Ursula did not mind the divine commandment, severity and acuity of the law concerning killing the Jews, as the Lord God in his sacred commandment prohibited killing, and

also suffered for both a Jew and a Catholic, [decided] that the aforementioned Ursula deserves harsh and severe punishment also for stealing, but since there is no plaintiff pursuing the crime of robbery, thus [we issue this sentence] for the other crime of killing a Jew, so that the others would be also sconded and that the crime would not go unpunished, and thus he is sentenced to death by decapitation near the statute of Passion outside of the town.

Stephan Kaznowski, starost of Wiśnicz.

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Court case from the municipal court in Nowy Wiśnicz

Actum coram plenario Iudicio utroque nostro Neovisnicensi die 10 mensis

Octobris Anno 1687mo [10 X 1687]

Inquisitio facta cum Luca Orsula ratione occisi Iudaei in qua inquisitione quaesitus Orsula, co za okazją miał do zabicia tego Żyda, respondit: Jam żadnej nie miał okazji, tylko syn Pirdzielow z Strozykiem przyszedł do mnie. Leżałem w południe, bom popieł i przyszedzsy mówieli mi, że ociec nam mówi, że Żyd tu idzie, ma piniądze, żeby go zatracić. I tak poszliśmy za niem. Jam go pochwycieł, a Strozyk pał wziął przy drodze. On go bił. Jam go tylko gnietł, ale bym ja był tego nie uczynieł, gdyby był Pirdziel stary nie kazał tym chłopcom do mnie. Item quaesitus, gdzie piniądze podzieli, respondit: Że chłopcom Pirdzielowi i Strozykowemu bratu daliśmy po złotemu, a sami z Strozykiem rozdzieliliśmy się. Suknie złe były i jam je zakopał w dołku.

[...]

Iudicium Advocatiale et Scabinale Consulareque in facinore et scelere inculpati Lucae Orsula decretum tale edidit. Naprzód, że pomieniony aktor i instygator Marek Czapnik przełożył skargę swoją na przeciw obwinionemu złoczyńcy Łukaszowi Orsuli ze wsi Rezawy o zabicie zięcia swego, na którego u Sądu naszego świętej sprawiedliwości upraszał, z której proposityey będąc stricte inquirowany po raz drugi i trzeci, sam benevole zeznał się, że zabił cum complicitibus suis, a że tego negował, żeby go miał bić, tylko pochwycieł i dawieł, a Strozyk palema zabijał, Sąd go propter maiorem rei veritatem quaestionibus adiudicavit kędy a-w tym to zabójstwie-a do złodziejstwa zeznał się, Sąd tedy przejrzawszy się w tej sprawie i uważając to, że pomieniony Ursula nie pomniał na przykazanie boskie, na surowość i ostrość prawa na zabójców opisanego lubo to Żyda, ale Pan Bóg w przykazaniu swoim świętym zakazał zabicia i tak Pan Bóg dał się za Żyda, jako i katolika umęczyć, luboby

pomieniony Ursula srozsze i surowsze karanie zaslužył względem i kradzieży, ale że na tę instigatora nie masz za ten tedy exces i zabicie Żyda, aby się inni tym karali i crimina ne maneant impunita śmierć naznacza ściętą Ursuli pod Bożą Męką za miastem.

Stephan Kaznowski, starosta wiśnicki. m.p.10